
2:00 PM **LINE 1**

23-CIV-02437

SHAOLIN TAN VS. SABUHI PASHA, ET AL

SHAOLIN TAN
SABUHI PASHA

SAMUEL RAY
PRO PER

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Yakup Sari to be relieved as counsel of record for defendant Schildr Inc. is denied without prejudice for lack of proof that defendant was given proper notice of the motion. The Proof of Service indicates the motion was served on defendant by mail and electronically. California Rules of Court, rule 3.1362(d) provides that if the notice of motion is served by mail, it must be accompanied by a declaration stating that the service address is current or that it is the last known address and that counsel has been unable to locate a more current address despite reasonable efforts to do so within 30 days of filing the motion. If the notice is served electronically, it must be accompanied by a declaration stating the electronic address is current. Current is defined to mean that the address has been confirmed within 30 days before filing the motion.

The Sari declaration states that defendant was served by mail at its last known address and that this address was confirmed. However, it indicates that the method of confirmation was email. The fact that counsel sent an email to defendant does not confirm that the mailing address or electronic address is current.

Furthermore, the Proof of Service indicates the moving papers were served on March 23, 2026, the same day the motion was filed. However, the hearing date was changed at the time of filing. It is unclear whether the copy of the notice served was the original or amended version. To date, the court's record does not reflect the filing or service of an amended notice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, Sari shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 2**

24-CIV-04923

SUSAN CARROLL VS. ROBERT JOSEPH STEGER, ET AL

SUSAN CARROLL
ROBERT JOSEPH STEGER

QUINTON B. CUTLIP
STEFANIE DESALERNOS

DEFENDANT ROBERT STEGER'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT CCP 877.6

TENTATIVE RULING:

The Motion for Good Faith Settlement, filed by defendant Robert Steger, is **DENIED without prejudice**.

Steger has not sufficiently set out facts that meet the standard for approval of a good faith settlement determination pursuant to Code of Civil Procedure, sections 877 and 877.6, and per the factors set out in *Tech-Bilt Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal.3d 488, 499 (*Tech-Bilt*). The factors set out in *Tech-Bilt* require the court to consider:

1. A rough approximation of plaintiffs' total recovery and the settlor's proportionate liability,
2. the amount paid in settlement,
3. the allocation of settlement proceeds among plaintiffs, and
4. a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial,
5. the financial conditions and insurance policy limits of settling defendants, and
6. the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, *supra*, 38 Cal.3d at p. 499.)

Steger has only addressed the question of the amount of available insurance coverage, explaining that the settlement is \$10 less than his policy limits. While that is a factor to be considered, it is not the sole factor. In particular, Steger has not supplied a "rough approximation of plaintiffs' total recovery and the settlor's proportionate liability."

Hoseley Corporation and the State of California oppose the motion, arguing that Steger has failed to supply sufficient evidence to permit the court to review the settlement.

The court requires additional information before it can make a good faith determination. In any future motion for good faith settlement determination, Steger should provide information and evidence regarding the application of the *Tech-Bilt* factors to the settlement.
